

Tentative Rulings for June 9, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2102359	MICHAEL A. CAPOZZA VS JOSEPH RUBIN	MOTION AUTHORIZING SERVICE OF PROCESS ON DEFENDANT RUBIN CAPITAL GROUP, LLC VIA CALIFORNIA SECRETARY OF STATE BY MICHAEL A. CAPOZZA

Tentative Ruling:

Motion is granted. Moving party to submit an order for Court's signature.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403625	STROTHERS VS FORD MOTOR COMPANY	MOTION TO COMPEL PLAINTIFF CYNTHIA STROTHERS' DEPOSITION AND REQUEST FOR MONETARY SANCTIONS AGAINST PLAINTIFF AND STRATEGIC LEGAL PRACTICES, APC, JOINTLY AND SEVERALLY

Tentative Ruling:

Moving party: Defendant Ford Motor Co.

Responding party: Plaintiff Cynthia Strothers ("Plaintiff") [successor in interest to George Strothers who passed away after this action was commenced]

On June 26, 2024, Plaintiff George Strother filed a Complaint against Ford alleging violations of the Song-Beverly Consumer Warranty Act, breach of implied warranty, and fraudulent inducement–concealment as well as a negligent repair claim against Defendant Raceway Ford relating to alleged defects with Plaintiff's 2023 Ford F-150.

On December 3, 2024, Ford timely serve its Notice of Deposition for Plaintiff George Strothers to appear for a deposition on March 7, 2025. (Declaration of Camden C. Pisciotta ("Pisciotta Decl."), ¶ 3, Ex. A.) In the email serving the deposition notice, Ford asked Plaintiff George Strothers to provide alternative availability for a deposition to occur within the next 30 days, if the noticed date did not work for Plaintiff George Strothers. (Id. at ¶ 3, Ex. B.) Plaintiff never responded to Ford's request nor provided alternative dates. (Id. at ¶ 3.)

On March 7, 2025, Plaintiff served an objection to the deposition notice claiming it was "unilaterally noticed by Defendant for a date and time on which Plaintiff and/or Plaintiff's counsel [were] unavailable." (Id. at ¶ 4, Ex. C.) The objection stated that Plaintiff would not appear for the set date and that Plaintiff would meet and confer with

Ford to reschedule the deposition. (Ibid.) Plaintiff did not provide any alternative availability, nor did Plaintiff ever reach out on this matter. (Id. at ¶ 4.)

Thereafter, Ford served five additional notices for Plaintiff George Strothers on, April 7, 2025, August 18, 2025, September 18, 2025, October 6, 2025, and October 21, 2025. (Id. at ¶ 5. Exs. D, E, F, G, H.) In the email serving each of Ford's notices, it requested Plaintiff's alternative availability for their deposition. (Ibid.) However, Plaintiff responded to each of the notices claiming that the notice was "unilaterally noticed" and that "Plaintiff and/or Plaintiff's counsel [were] unavailable." (Id. at ¶ 6. Exs. I, J, K, L, M.)

On October 20, 2026, Plaintiff filed its Motion to Substitute Plaintiff Cynthia Strothers in as Plaintiff George Strothers successor-in-interest. (Id. at ¶ 7.) In its motion Plaintiff informed Ford that Plaintiff George Strothers had passed away and requested that Plaintiff Cynthia Strother be substituted in as a plaintiff in this case. (Ibid.) Plaintiff's motion was granted on January 15, 2025. (Ibid.) During the hearing on January 15, 2025, the court also continued trial to July, 31, 2026, specifically in reference to Plaintiff Cynthia Strothers being substituted into the case and the need to conduct her deposition prior to the motion for summary judgement deadline. (Id. at ¶ 7, N, O.)

On January 15, 2026, counsel for Ford emailed Plaintiff's counsel in an attempt to meet and confer regarding Plaintiff's deposition. (Id. at ¶ 8, Ex. P.) On January 23, 2026, Plaintiff's counsel emailed counsel for Ford offering for Plaintiff's deposition to take place on March 10, 2026, March 12, 2026, or March 13, 2026. (Ibid.) On February 3, 2026, after meeting and conferring with Plaintiff's counsel regarding Plaintiff's availability, Ford Served a Sixth Amended Notice of Deposition for Plaintiff George Strothers to appear for deposition on March 12, 2026. (Id. at ¶ 8, Ex. Q.) That same day, Ford realized its mistake in naming the deceased Plaintiff and served a Seventh Amended Notice of Deposition for Plaintiff Cynthia Strothers to appear for deposition on March 12, 2026. (Id. at ¶ 8, Ex. R.)

On March 11, 2026, the day before Plaintiff was scheduled to appear for their mutually agreed deposition, Plaintiff's counsel emailed counsel for Ford, informing Ford that Plaintiff would be cancelling the deposition set for March 12, 2026, due to scheduling conflicts. (Id. at ¶ 9, Ex. S.)

On March 11, 2026, Plaintiff also served an objection to Ford's Seventh Amended Notice of Deposition stating that "[d]ue to scheduling conflicts, Plaintiff and Plaintiff's Counsel are no longer available for the noticed date." (Id. at ¶ 10, Ex. T.) The objection stated that Plaintiff would not appear for the set date and that Plaintiff would meet and confer with Ford to reschedule the deposition. (Ibid.) Plaintiff did not provide any alternative availability, nor did Plaintiff ever reach out on this matter. (Id. at ¶ 10.)

Additionally, Plaintiff's counsel cancelled at least 127 (it is unclear how this is calculated but this is what the declaration says) confirmed depositions scheduled to occur between January 1, 2026, and March 27, 2026. (Id. at ¶ 11.) Included in this figure Plaintiff's counsel cancelled at least 41 confirmed depositions scheduled to occur between March 1, 2026, and March 27, 2026. (Ibid.) Many of these cancellations occurred under the same excuse of "scheduling conflicts" and occurred at the last

minute. (Id. at ¶ 11, Exs. U, V.) It has become clear that Plaintiff's counsel has made a habit of either offering deposition dates it had no intention on producing their clients on or intentionally overbooks its calendar knowing that their firm does not have the capacity to appear for each of the depositions it has scheduled. (Ibid.) This tactic has led to counsel for Ford wasting precious time preparing for depositions that will not take place and the need to prepare various motions to compel, similar to this one. (Ibid.)

Despite this Ford made one final attempt to meet and confer with Plaintiff's counsel before filing the instant Motion. (Id. at ¶ 12.) On January 2, 2026, Ford's counsel emailed Plaintiff's counsel in an attempt to meet and confer with them regarding Plaintiff's availability for deposition. Ford asked Plaintiff's counsel to provide Ford with dates for Plaintiff's deposition to occur prior to March 26, 2026, given Ford's April 11, 2026, Motion for Summary Judgement deadline. (Id. at ¶ 12, Ex. W.) However, as of the filing of this motion, Ford has not heard back from Plaintiff. (Id. at ¶ 12.)

Defendant now moves to compel Plaintiff's deposition and imposing monetary sanctions against Plaintiff and their attorneys of record, Strategic Legal Practices, APC, jointly and severally, in the sum of \$560 as the reasonable costs and expenses, including attorney fees, incurred in obtaining the foregoing order.

This Motion is made pursuant to section 2025.450(a) of the California Code of Civil Procedure on the grounds that Plaintiff's deposition has been properly noticed on seven occasions, including on one occasion after Plaintiff Cynthia Strothers was substituted in as a Plaintiff in this matter; Plaintiff objected to six notices on the grounds of them being unilaterally noticed and being unavailable; Plaintiff objected to their mutually agreed deposition due to a scheduling conflict; Ford has requested Plaintiff's availability on numerous occasions, but Plaintiff has never meaningfully responded to any of Ford's requests; and to date, Plaintiff has failed to appear for any of their properly noticed depositions. Plaintiff's failure to appear for their deposition is a violation of their obligations under the Code, is plainly dilatory, and stands to prejudice Ford's ability to prepare its case and bring a motion for summary judgment should it be necessary.

Ford further moves the Court pursuant to section 2023.030(a) of the Code of Civil Procedure and Rule 3.1348(a) of the California Rules of Court for an order awarding monetary sanctions against Plaintiff Cynthia Strothers and their attorneys of record, Strategic Legal Practices, APC, jointly and severally, in the amount of \$560 for costs and expense in bringing this Motion on the grounds that Plaintiff has failed to submit to an authorized method of discovery without substantial justification.

In Opposition, Plaintiff contends her counsel has offered dates on two occasions. (Declaration of Tyson Smith ("Smith Decl."), ¶¶ 6-9, Exs. C and D). Plaintiff says that she offered dates on two occasions. (Smith Decl. ¶¶ 6-9, Exs. C and D). On March 20, 2026, Plaintiff's Counsel emailed Defendants offering new deposition dates for Plaintiff Cynthia Strothers' deposition to take place on May 21, 2026, or May 22, 2026, to which Defendants refused to consider. (Smith Decl. ¶ 6, Ex. C). On May 27, 2026, Counsel emailed Defendants offering new deposition dates for Plaintiff Cynthia Strothers' deposition to take place on either June 1, 2026, June 2, 2026, June 4, 2026, June 5,

2026, or June 8, 2026. (Smith Decl. ¶ 7, Ex. D). As of the date of this opposition, Plaintiff's Counsel has received no response from Defendants. (Smith Decl. ¶ 8)

Plaintiff contends that this motion is unnecessary since Plaintiff was always willing to be deposed. Plaintiff also contends that sanctions are not appropriate because Plaintiff was always willing to be deposed; at no point in time has Plaintiff or Plaintiff's counsel indicated that Plaintiff Cynthia Strothers was unwilling to be deposed. Plaintiff's Counsel has offered dates on two occasions. If Defendant's had accepted a date in May of 2026, this matter could have been resolved by now. (Smith Decl. ¶ 9).

In Reply, Defendants contend that Plaintiff never explained or justified their repeated delays to schedule a deposition, and it wasn't until May 2026 that they offered dates. They contend that the CCP authorizes a motion to compel the deposition of Plaintiff who repeatedly failed to appear for their properly noticed deposition.

Plaintiff in their opposition does not attempt to argue that their objections were valid, only that they have offered dates of two occasions after Ford filed its motion. (See Plaintiff's Opp. at 2:25.) To be clear, Plaintiff's counsel first offered that Plaintiff's deposition be taken on March 12, 2026, however Plaintiff cancelled that deposition the day before it was set to take place. (Pisciotta Decl. ¶ 10.) Then, since filing its motion, Plaintiff offered for Plaintiff's deposition to be taken over a month after Ford's deadline to file its motion for summary judgement. (See Plaintiff's Opp. at 2:4- 6.) **Ford has since accepted Plaintiff's offer for their deposition to take place on June 8, 2026. However, if Plaintiff fails to appear on June 8, 2026, then Plaintiff is ordered to appear for their deposition within two weeks of the hearing on this motion.**

Analysis

I. Standard

Service of a proper deposition notice obligates a party to attend and testify, and produce documents designated in the deposition notice. (CCP § 2025.280(a).) If such party deponent fails to appear or produce documents, without having served a valid objection under CCP § 2025.410, the party giving the notice may move for an order compelling the deponent's attendance and testimony and production of documents. (CCP § 2025.450(a).) Importantly, the motion must be accompanied by a meet and confer declaration under Section 2016.040, or when the deponent fails to attend the deposition, by a declaration stating that the moving party has contacted the deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) Implicit in the requirement is that counsel make a good faith attempt to resolve the issue by rescheduling the deposition. (*Leko v. Cornerstone Building Inspection Service* (2001) 86 Cal.App.4th. 1109, 1124.)

Here, the parties have agreed for Plaintiff's deposition to take place on June 8, 2026, a day before this hearing on June 9, 2026. If deposition takes place on June 8, 2026, then this motion is moot except for the issue of sanctions. If the deposition does

not take place on June 8, 2026, the Court orders the deposition to take place within **two weeks of this hearing**.

Sanctions. Plaintiff does not justify the delay in setting a deposition date in this matter and the Court does not find the delays were justified. Accordingly, sanctions are imposed in the amount of \$560 payable within 30 days of this order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404704	AULLS VS FCA US, LLC.	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$35,000) OF ERIC M AULLS BY FCA US, LLC.

Tentative Ruling:

Moving party: Defendant FCA US LLC

Responding party: Plaintiffs Eric M. Aulls and Leah V. Aulls

This is a Song-Beverly action. Plaintiffs Eric M. Aulls and Leah V. Aulls (“Plaintiffs”) allege that they leased a 2022 Jeep Wrangler Unlimited on 7/8/22, with transmission defects, engine defects, electrical defects, and brakes defects. The operative complaint, filed 8/21/24, asserts against Defendant FCA US LLC (“FCA”): (1) Civil Code §1793.2(d); (2) Civil Code §1793.2(b); (3) Civil Code §1793.2(a)(3); (4) breach of implied warranty. Trial is set for 7/10/26.

Defendant now moves for summary adjudication of the 2nd and 3rd causes of action. On the 2nd cause of action, Defendant argues that there is no evidence any repair representation was not commenced within a reasonable time or that any single repair visit exceeded 30 days. On the 3rd cause of action, Defendant argues that Plaintiffs have no evidence any repair was delayed due to a lack of replacement parts or service literature. Defendant asserts that Plaintiffs have failed to identify which specific parts or literature were withheld or not provided.

In opposition, Plaintiffs argue that Defendant’s evidence is inadmissible because it is introduced solely through the declaration of its attorney, who lacks the personal knowledge or foundation to authenticate repair orders. On the merits, Plaintiffs argue that the 2nd cause of action does not require a single 30-day repair visit, but rather a failure to repair the vehicle “so as to conform to the applicable warranties within 30 days.” (Civ. Code, § 1793.2(b).) They argue that unsuccessful repairs, or repairs that addressed one problem but introduced another defect, create a triable issue. For the 3rd cause of action, Plaintiffs argue that the court should infer a lack of sufficient literature from the dealer’s inability to “duplicate” the brake concern and the failed repairs creating new problems.

In reply, Defendant argues that Plaintiffs have still failed to identify admissible evidence to support their claims.

Analysis

A. Evidentiary Objections

Plaintiffs submit 12 written objections to the Declaration of Alejandro Blake and the 10 exhibits attached thereto. The objections primarily argue that defense counsel lacks personal knowledge and foundation to authenticate the vehicle lease, the warranty booklet, repair orders, and discovery responses, and that the documents are therefore inadmissible hearsay. The court declines to consider these objections as they are not dispositive in this motion.

B. Merits

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 855.)

A defendant can meet his initial burden by showing that one or more elements of the cause of action cannot be established, or that there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2).) To demonstrate that a cause of action cannot be established, the defendant must either negate an essential element of the plaintiff's cause of action or show that the plaintiff lacks evidence. (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1301.) To negate an element, the defendant must establish that plaintiff's claim fails as a matter of law. (*Erikkson v. Nunnick* (2011) 191 Cal.App.4th 826, 849.) To demonstrate that the plaintiff lacks evidence, the defendant must show that the plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at 855.) A defendant may not simply point to an absence of evidence but must show that the plaintiff cannot reasonably obtain such evidence. (*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.)

A motion for summary judgment should be granted if no triable issue exists as to any material fact and the moving party is entitled to a judgment as a matter of law. (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal.4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar, supra*, 25 Cal.4th at 850.) Once this burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Ibid.*) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.) It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.)

1. The Song-Beverly Act (the "Act")

“The Song-Beverly Act is a remedial statute designed to protect consumers who have purchased products covered by an express warranty.” (*Robertsons v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 740.) “If a manufacturer elects to provide an express warranty for consumer goods such as motor vehicles, the Act protects buyers in a number of ways.” (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 121.) One of such protection is the requirement that the manufacturers of consumer goods sold in this state are to maintain service and repair facilities or designate independent repair or service facilities “reasonably close to all areas where its consumer goods are sold to carry out the terms of the warranties.” (Civ. Code § 1793.2, subd. (a)(1)(A).)

Under the Act “[w]here...service or repair of goods is necessary because they do not conform with the applicable express warranties, service and repair shall be commenced within a reasonable time by the manufacturer or its representative in this state ...[and] the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days.” (Civ. Code § 1793.2, subd. (b).) “If the manufacturer or its representative...is unable to service or repair a new motor vehicle...to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle...or promptly make restitution to the buyer...” (Civ. Code § 1793.2, subd. (d)(2).) If the manufacturer fails to comply with the Act, the buyer has recourse to bring an action to recover damages and “other legal and equitable relief”, and, in the event the violation is found to have been willful, to be awarded civil penalty which is not to exceed two times the amount of actual damages. (Civ. Code § 1794, subs. (a) & (c).)

A plaintiff pursuing an action under the Consumer Warranty Act has the burden to prove the nonconformity element, the presentation element, and the failure to repair element. (*Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 152.) More specifically, the elements of a claim for a manufacturer’s violation of the Song-Beverly Consumer Warranty Act are: “(1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use, value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element).” (Civ. Code § 1793.2, subd. (d)(2).)

2. Civil Code section 1793.2(b) (Second Cause of Action)

Civil Code section 1793.2, subdivision (b) requires service and repair to be commenced within a reasonable time by the manufacturer or its representative and that goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days, unless the buyer agrees in writing to the contrary.

Defendants assert it is undisputed that no single repair presentation took more than 30 days. (Undisputed Material Facts “UF” no. 10.) Indeed, the repair history shows four visits, with the longest lasting 24 days beginning 2/21/24. (See, UF 3, 4, 6, 7.)

Plaintiffs argue that section 1793.2, subdivision (b), is violated when the manufacturer fails to “fully conform” the entire vehicle to warranty within 30 days of a presentation. It argues that an incomplete or defective repair that is returned to the consumer within 30 days still constitutes a violation.

In *Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, the manufacturer repaired the stalling of the bridge operation, but in doing so, introduced a new defect due to the inability of the fuel pump to shut off in the event of an accident. The court affirmed the jury’s finding that the manufacturer failed to conform the car to the applicable express warranties of full functionality, rejecting what it termed “a ‘MacGyver’ half measure that simply swaps defects.” (*Id.* at 345-346.) Here, Plaintiffs presented evidence that after the 24-day repair visit ending on 3/15/24, they retrieved the vehicle but discovered that the oil was “low, like extremely low,” requiring Plaintiffs to “go get an oil change right after.” (Defendant’s compendium of evidence, Exh. 10 at 61:14-62:6.) This testimony creates a triable issue of fact as to whether the vehicle was actually repaired so as to fully “conform” to the applicable warranties when it was returned to the Plaintiffs. It also creates a triable issue as to whether the repair has created a new defect, similar to the “half measure” in *Santana*.

Based on the foregoing, Plaintiffs have raised a triable issue of material fact, and **the court denies summary adjudication of the 2nd cause of action.**

3. Civil Code section 1793.2(a)(3) (Third Cause of Action)

Civil Code section 1793.2, subdivision (a)(3) requires a manufacturer to make available to authorized service and repair facilities “sufficient service literature and replacement parts to effect repairs during the express warranty period.”

Defendants argue that there is no evidence it failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period in violation of Civil Code section 1793.2, subdivision (a)(3). However, Defendants failed to submit any evidence that it provided sufficient service literature and replacement parts for the repairs at issue. Thus, Defendant failed to meet its initial burden of production to show that an essential element of the claim cannot be established. As Defendant has not met its burden, the burden does not shift to Plaintiffs to produce evidence to reflect a triable issue of material fact. **Accordingly, the court denies summary adjudication as to the 3rd cause of action.**

Summary:

Deny summary adjudication of the 2nd and 3rd causes of action.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600199	CITY OF SAN JACINTO VS JUAN CARLOS D. REDIN AND TONI S. REDIN	MOTION FOR PREJUDGMENT POSSESSION

Tentative Ruling:

This motion is not opposed. Accordingly, the motion is granted in all respects. Moving party to submit an order for the Court's signature. Moving party to give notice of ruling.